



EXECUTIVE OFFICE OF THE PRESIDENT
OFFICE OF CHIEF OF STAFF AND HEAD OF PUBLIC SERVICE
STATE CORPORATIONS ADVISORY COMMITTEE

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OFFICE OF THE SECRETARY
KICC, 9TH FLOOR
P.O. Box 42145 – 00100
NAIROBI, KENYA
7th July, 2025

Ref. No. OP/SCAC 39/4 A (40)

Chief Executive Officers
All State Corporations

RE: ANNUAL LEAVE

This is further to circular Ref. No. OP/CAB. 2/1 of 27th September, 2023 (*copy attached*) vide which Government policy relating to staff annual leave was reiterated.

Due to the current noted breach of paragraphs 5 and 6 of the provisions of the circular, it has become imperative to buttress the same by categorically stating that all staff of State Corporations, including Chief Executive Officers:-

- i. Shall be required to utilize all their leave days within the leave year but may defer not more than fifteen (15) unutilized leave days to the subsequent leave year;
- ii. Shall not in any way be entitled to commutation of unutilized leave days for cash; and
- iii. Shall automatically forfeit any leave days not utilized by end of the leave year, except the fifteen (15) allowable leave days as in (i) above.

Please bring the contents of the referenced circular (attached) to the attention of your staff and respective Boards.

Simon M. Indimuli, MBS, OGW.,
SECRETARY

Copy to: Mr. Felix K. Koskei, EGH.,
Chief of Staff and Head of the Public Service
Executive Office of the President
NAIROBI

CPA Nancy Gathungu, CBS
The Auditor General
Office of the Auditor General
NAIROBI

Mr. James Mungai Warui, 'ndc' (K)
Ag. Inspector General (Corporations)
Inspectorate of State Corporations
NAIROBI



EXECUTIVE OFFICE OF THE PRESIDENT
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P.O. Box 40530-00100
Nairobi, Kenya

Ref. No. **OP/CAB. 2/1**
and date

...September 27, 2023....

The Attorney General

All Cabinet Secretaries

All Principal Secretaries/Authorised Officers

Chairpersons and Chief Executive Officers of State Corporations

Chairpersons and Chief Executive Officers of Independent Offices and Commissions

RE: ANNUAL LEAVE

It has been brought to the attention of this office that the prescriptions on annual leave as stipulated in the Public Service Human Resource and Procedure Manual 2016, and respective Human Resource Policies of State Corporations are not being adhered to.

Annual leave is a right, and serves a recuperative purpose to enable officers renew their energies and improve on efficiency. Though subject to exigencies of duty, all public officers are to be facilitated to take their annual leave, noting that the same is not accumulative, nor commutable other than as prescribed in service regulations. In any event, a public officer cannot have more than 45 leave days in any given year, being a product of the total available days annually, and allowable carry over days.

To achieve the purpose intended by this policy, the Principal Secretaries/Authorised Officers and Chief Executive Officers of State Corporations, Commissions and Independent Offices, are directed to:

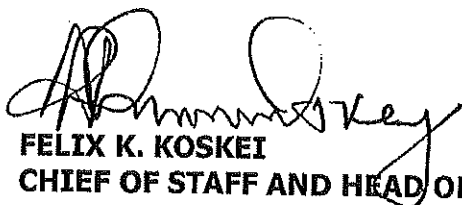
1. Review, determine and update the pending leave days for each and every public officer under their jurisdiction;
2. Prepare the necessary leave plans/rota and ensure enforcement of the same through the respective heads of department and human resource

managers. The leave plans should be mindful to secure continuity of service delivery;

3. Officers with accumulated or unutilised leave days should proceed on leave as per the plan/rota, guided by the remits and exigencies of duty. The officers should provide evidence of their application forms, indicating the line supervisor deferment decision due to exigencies of duty, to justify accumulated days;
4. Human Resource Managers shall ensure that all leave days, including those already carried forward in the current leave year, are utilised on or before the 30th of June 2024. Officers must apply for their leave in the prescribed format, or be deemed to have forfeited the same.
5. There shall be no more carry over, of more than the designated fifteen (15) unspent leave days into a new leave year. Authorised officers must secure compliance with this requirement, and assure the same in the next annual leave plan instrument.
6. There shall be no further commutation for cash for unspent leave days without the prior written approval of this office. Principal Secretaries/Accounting Officers are directed to effect compliance with this directive that takes effect from the date of this circular.

Boards and Councils of State Corporations and Universities, Commissions and Independent Offices are guided to similarly undertake the above exercise for their respective Chief Executive Officers and staff. The details of Chief Executive Officer outstanding leave days, and proposed dates of utilisation should be transmitted to this office for information and record by **6th October 2023**.

We call upon the Parliamentary Service Commission and Council of Governors to similarly consider customising the above framework for annual leave utilisation within the context of the guidelines herein for standardisation.



FELIX K. KOSKEI
CHIEF OF STAFF AND HEAD OF THE PUBLIC SERVICE

Copy to: Hon. Moses Wetangula, EGH
Speaker of the National Assembly/Chairperson
Parliamentary Service Commission
Parliament Buildings
NAIROBI

Hon. Anne Waiguru, EGH

Chairperson

Council of Governors

NAIROBI

Hon. Aisha Jumwa

Cabinet Secretary

Ministry of Public Service, Gender and Affirmative Action

NAIROBI

CPA. Nancy Gathungu, CBS

Auditor General

Office of the Auditor General

NAIROBI

Amb. Anthony Muchiri, CBS

Chairperson

Public Service Commission

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Mr. George N. Macgoye, EBS

Chief of Staff

Office of the Deputy President

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Mr. Joseph N. Busiega, MBS,ndc (K)

Chief of Staff

Office of the Prime Cabinet Secretary

NAIROBI

